

Pinki vs Jwala Prasad on 5 December, 2012

Author: Alok Sharma

Bench: Alok Sharma

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN AT JAIPUR BENCH

ORDER

S.B. CIVIL WRIT PETITION NO.7094/2012
S.B. CIVIL MISC. STAY APPLICATION NO.6054/2012
(Pinki Vs. Jwala Prasad)

Date of Order :

05.12.2012

PRESENT

HON'BLE MR. JUSTICE ALOK SHARMA

Mr. R.D.S. Naruka, for the petitioner.

Mr. Sanjay Sharma, for the respondent.

BY THE COURT

The issue in the present petition is with regard to non-payment of interim maintenance to the petitioner-wife by the respondent-husband in spite of the direction of the District Judge, Jhunjhunu in Civil Case (HMA) No.229/2007 on an application under Section 24 of the Hindu Marriage Act, 1955 (hereinafter 'the Act of 1955'), decided on 24.10.2008.

2. On 20.12.2011, the petitioner-wife as defendant in the divorce petition under Section 13 of the Act of 1955 (hereinafter 'the defendant') moved an application before the District Judge, Jhunjhunu stating that in spite of the order dated 24.10.2008, the amount of interim maintenance thereunder was not being paid. The application was opposed by the respondent-husband as plaintiff in the divorce petition (hereinafter 'the plaintiff') stating that no amounts were due under the said order dated 24.10.2008 as the requisite amount had been paid in respect of the order passed under Section 125 Cr.P.C. at the instance of the defendant. It was further stated that in any event, even if any amount was payable under the order dated 24.10.2008, passed under Section 24 of the Act of 1955, there was no occasion to keep the divorce petition in abeyance and consequently, the application dated 20.12.2011 be dismissed.

3. The trial court dismissed the application filed by the defendant holding that if any amount was due under the order dated 24.10.2008, it was of little consequent for the determination of the divorce petition which was pending since 2007. It was held that in the event any amounts were due

to the defendant by the plaintiff under the order dated 24.10.2008, she was free to take proceedings separately for recovery thereof.

4. Mr. R.D.S. Naruka, appearing for the defendant, has relied upon the judgment of this Court in the case of Bhanwar Lal Vs Smt. Kamla Devi [1983 RLW 314] to contend that where an order under Section 24 of the Act of 1955 is passed during the pendency of the main petition and the same is disobeyed, in addition to the enforcement of the order as a money decree by virtue of the provisions of Section 28-A, the court could stay the proceedings in the main petition, strike out the defence of the defaulting party or dismiss the main petition itself, as the court may consider appropriate in the facts and circumstances of the case. Counsel has also relied upon another judgment of this Court in the case of Geeta Devi (Smt.) Vs. Shri Hari Ram Yogi [2003 (2) DNJ (Raj.) 660] wherein it has been held that where the husband does not comply with the order of the court under Section 24 of the Act of 1955, a direction to comply with the said order can be made by the court. This Court in the aforesaid case further directed that if the husband did not deposit all the arrears of the amount payable under the order for interim maintenance passed under Section 24 of the Act of 1955 within time frame set out by the court, the divorce petition of the husband would stand dismissed in toto and unconditionally.

5. Mr. Sanjay Sharma, appearing for the plaintiff has submitted that the amounts computed and payable under the order dated 24.10.2008 shall be deposited before the District Judge, Jhunjhunu within a period of two months from today. He submits that all arrears as on the date of deposit with the session court shall be accounted for.

6. Consequently, this petition is disposed of with the direction to the plaintiff-husband to deposit in the sessions court all arrears determined with reference to the direction under the order dated 24.10.2008 passed by the District Judge, Jhunjhunu. The deposit be made by 05.02.2013. In the event, the required amount is deposited by the plaintiff-husband within time as aforesaid, the same be disbursed to the defendant-wife within three days of her filing an application for disbursement. It is made clear that till the deposition of the amount due to the defendant-wife under the aforesaid order dated 24.10.2008, proceedings in the main petition for divorce shall be kept in abeyance. In the event, the amount is deposited by the plaintiff-husband by 05.02.2013, the District Judge, Jhunjhunu is directed to dispose of the main petition for divorce within a period of fifteen days of the deposition. Contrarily, if the amount is not deposited by the plaintiff-husband within the prescribed period as directed hereinabove, his petition for dissolution of the marriage be dismissed forthwith and formal orders thereon be passed by the court immediately.

7. Stay application needs no address in view of the writ petition being disposed of as above.

(ALOK SHARMA), J MS/-8 All corrections made in the judgment/order have been incorporated in the judgment/order being emailed.- Manoj Solanki, Jr. P.A